

		based; and (4) the amount to be secured by the attachment is greater than zero. (Code Civ. Proc., § 484.090, subd. (a); § 483.010, subds. (a)-(c); see also Compl. ¶¶ 8-22; Reyes Decl. ¶¶ 3-18, Ex. 1; Boufadel Decl. ¶¶ 3-5.) Plaintiff has complied with service requirements but has not shown proof of an undertaking. (Code of Civ. Proc. § 484.040, § 486.080, § 489.010, § 489.220, subd. (a); see also ROA 13, 22.) The amount to be secured by the attachment includes the estimated amount for costs and attorney fees. (Code of Civ. Proc. § 482.015, § 482.110, subd. (b); Boufadel Decl. ¶ 7.) Counsel for Plaintiff shall provide notice of this ruling.
5	Contreras v. Kirkwood Orange MSL, LLC	The motion to compel arbitration filed by defendants Kirkwood Orange MSL LLC; MSL Community Management LLC; and MBK Senior Living LLC (collectively, Moving Defendants) is DENIED. Moving Defendants seek to compel the claims of plaintiffs Elva Contreras, by and through her Personal Representative, Cathy Bustos; Cathy Bustos, individually; and Patricia Herrera, individually (collectively, Plaintiffs) to arbitration pursuant to the Federal Arbitration Act (FAA, 9 U.S.C. § 1, et seq.). Under the FAA, the moving party on a motion to compel arbitration must demonstrate the existence of an arbitration agreement between the parties that covers the controversy or claims at issue. (Roes v. SFBSC Management, LLC (9th Cir. 2016) 656 Fed.Appx. 828, 829; Knutson v. Sirius XM Radio Inc. (9th Cir. 2014) 771 F.3d 559, 565.) In determining the validity or “the rights of parties to enforce an arbitration agreement within the FAA’s scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration.” (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236.) Indeed, this federal policy in favor of arbitration “does not come into play... until a court has found the parties entered into a valid contract under state law.” (Metters v. Ralphs Grocery Co. (2008) 161 Cal.App.4th 696, 701.) “The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC, supra, 55 Cal.4th at 236.) Moving Defendants seek to compel arbitration based on the “Assisted Living Residence and Services Agreement” and “Arbitration Agreement” executed on May 30, 2024. These agreements were executed on behalf of resident, Elva Contreras, by her daughter and representative, Cathy Bustos. (See Exhibits A and B to Soriano Decl.) Moving Defendants contend Ms. Bustos signed these agreements on behalf of Ms. Contreras pursuant to a Durable Power of Attorney executed by Ms. Contreras on September 22, 2023, appointing Ms. Bustos as her attorney-in-fact. (See Exhibit C to Soriano Decl.) The Durable Power of Attorney provides that it becomes effective only upon Ms. Contreras’ incapacity as proved by either (1) a